

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
SCOTT ADELMAN,

Plaintiff,

-against-

TILACK RAMOODIT,

Defendant.
-----X

TO THE ABOVE NAMED DEFENDANT(S):

SUMMONS

Index No.:

Date Filed:

Defendant resides at
10212 97th Avenue, Apt. 1
Ozone Park, New York 11416

YOU ARE HEREBY SUMMONED to appear in this action by serving a notice of appearance on the Plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service, or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York. In case of your failure to answer, Judgment will be taken against you by default for the relief demanded in the Complaint.

The basis of the venue designated is Defendant's place of residence.

Dated: Garden City, New York
January 2, 2014

Yours, etc.

Decolator, Cohen & DiPrisco, LLP

By: Joseph L. Decolator, Esq.
Attorneys for Plaintiff
1399 Franklin Avenue, Suite 300
Garden City, New York 11530
(516) 742-6575

DEFENDANT'S ADDRESS:

TILACK RAMOODIT
10212 97th Avenue, Apt. 1
Ozone Park, New York 11416

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X **Index No.**
SCOTT ADELMAN,

Plaintiff, **VERIFIED**
- against - **COMPLAINT**

TILACK RAMOODIT,

Defendant.
-----X

Plaintiff, by his attorneys, DECOLATOR, COHEN & DIPRISCO, LLP, as and for his
Verified Complaint, respectfully alleges, upon information and belief:

**AS AND FOR A FIRST CAUSE OF
ACTION ON BEHALF OF THE PLAINTIFF**

1. That at all times hereinafter mentioned, Plaintiff was and still is a resident of the County of Suffolk, State of New York.
2. Upon information and belief, at all times hereinafter mentioned, Defendant was and still is a resident of the County of Queens, State of New York.
3. That at all times hereinafter mentioned, Plaintiff was a police officer employed by the New York City Police Department.
4. Upon information and belief, that at all times hereinafter mentioned, Plaintiff was an on-duty police officer and was acting within the scope of and in furtherance of his employment.
5. On or about August 25, 2013, while the Plaintiff were lawfully and properly at or about the premises located at 10212 97th Avenue, Ozone Park, New York, Plaintiff was caused to sustain serious personal injuries when Defendant struck Plaintiff about his body with his fists.

6. Upon information and belief, at all times hereinafter mentioned, Defendant neglected, omitted and/or was willfully and/or culpably negligent in failing to comply with statutes, ordinances, codes, rules, orders and/or requirements of State, City and/or local governments of State, City and/or local governments then and there existent, including, but not limited to, Sections 120.05(3), 195.85 and 205.30 of the Penal Law.

7. The injuries sustained by the Plaintiff herein were sustained without any fault, want of care or culpable conduct on the part of the Plaintiff herein, but solely by virtue of the neglect, omission, willful or culpable negligence of the Defendant in failing to comply with statutes, ordinances, rules, codes, orders and/or other requirements of State, City and/or local governments then and there existent, including, but not limited to, Section 120.05(3), 195.85 and 205.30 of the Penal Law.

8. The Defendant violated the above-cited provision in that the Defendant, inter alia, intentionally prevented or attempted to prevent a police officer from effecting a lawful arrest of himself and failed to obey the lawful orders of a police officer; recklessly caused physical injury to the Plaintiff; caused a dangerous, disorderly and unruly situation to exist and remain; did without cause, justification or provocation cause physical injury to the Plaintiff.

9. Solely by reason of the foregoing, Plaintiff asserts a cause of action against the Defendant under Section 205-e of the General Municipal Law of the State of New York.

10. As a result of the Defendant's failure to comply with the above-described statute, the Plaintiff was severely injured both internally and externally; that the Plaintiff became sick, sore, lame, and disabled; and has suffered great pain, shock and mental anguish, and will continue to suffer for a long time and, upon information and belief, have been permanently injured; that by reason of the foregoing, the Plaintiff has been obligated to and did necessarily

employ medical aid and medicines in an attempt to cure said injuries; that Plaintiff was incapacitated from his employment and by reason of said disabilities, has suffered damages in an amount in excess of the maximum monetary jurisdiction of all lower Courts.

11. This action falls within one or more of the exceptions set forth in CPLR Section 1602.

**AS AND FOR A SECOND CAUSE OF
ACTION ON BEHALF OF THE PLAINTIFF**

12. The Plaintiff repeat, reiterate and reallege all of the facts set forth in the paragraphs numbered “1” through “11” inclusive, with the same force and effect as though more fully set forth herein.

13. On or about August 25, 2013, the Plaintiff was properly and lawfully at or about the premises located at 10212 97th Avenue, Ozone Park, New York.

14. At the time and place afore-described, Defendant without cause, justification or provocation, with no reasonable belief as to the existence of any such cause, justification or provocation, with intent to cause physical injury to the Plaintiff did cause physical injury to the Plaintiff.

15. That at all times hereinafter mentioned, and at the time and place afore-described, Defendant did without cause, justification or provocation, and with no reasonable belief as to the existence of any such cause, justification or provocation, with intent to cause physical injury to the Plaintiff, did cause physical injury to the Plaintiff.

16. The aforesaid acts by Defendant caused the Plaintiff to be rendered seriously injured, sick, sore and disabled, both internally and externally, and did cause the Plaintiff great physical, mental and emotional pain, trauma and distress, all of which were caused solely and wholly by reason of the conduct of the Defendant herein, with no fault or culpable conduct on the

part of the Plaintiff contributing thereto.

17. The damages sustained by the Plaintiff thereto described were caused solely and wholly by reason of the intentional conduct of the Defendant with no fault or culpable conduct on the part of the Plaintiff contributing thereto.

18. As a result of the foregoing, Plaintiff was required to seek and employ hospital and medical treatment of his injuries, and was caused to be disabled from his employment and, upon information and belief, was caused to be permanently injured.

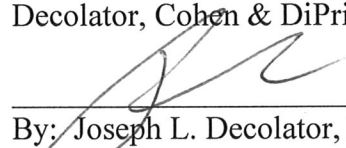
19. Solely as a result of the foregoing, Plaintiff has been damaged in an amount in excess of the maximum monetary jurisdiction of all lower courts.

WHEREFORE, Plaintiff demands judgment against the Defendant in the First and Second Causes of Action in an amount in excess of the maximum monetary jurisdiction of all lower Courts, together with the interest, costs and disbursements of this action.

Dated: Garden City, New York
January 2, 2014

Yours, etc.

Decolator, Cohen & DiPrisco, LLP



By: Joseph L. Decolator, Esq.
Attorneys for Plaintiff
1399 Franklin Avenue, Suite 300
Garden City, New York 11530
(516) 742-6575

STATE OF NEW YORK, COUNTY OF

SS.:

I, the undersigned, an attorney admitted to practice in the courts of New York State,

☒ Certification By Attorney certify that the within has been compared by me with the original and found to be a true and complete copy.

☐ Attorney's Affirmation state that I am the attorney(s) of record for **Plaintiff** in the within action; I have read the foregoing **Summons and Complaint** and know the contents thereof; the same is true to my own knowledge, except as to the matters therein alleged to be on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by plaintiff is because plaintiff resides in a county other than the one in which your deponent maintains his office.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows: conversations with plaintiff and office records.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Garden City, New York;
STATE OF NEW YORK, COUNTY OF

SS.:

I, the undersigned, being duly sworn, depose and say: I am

☐ Individual Verification in the action; I have read the foregoing

and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true.

☐ Corporate Verification the of a

corporation and a party in the within action; I have read the foregoing and know the contents thereof; and the same is true to my own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters I believe it to be true. This verification is made by me because the above party is a corporation and I am an officer thereof.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows:

Sworn to before me on

STATE OF NEW YORK, COUNTY OF

SS.:

(If more than one box is checked—indicate after names type of service used.)

I, the undersigned, being sworn, say: I am not a party to the action, am over 18 years of age and reside at

On I served the within

☐ Service By Mail { by mailing a copy to each of the following persons at the last known address set forth after each name below.
☐ Personal Service on Individual { by delivering a true copy of each personally to each person named below at the address indicated. I knew each person served to be the person mentioned and described in said papers as a party therein:
☐ Service by Electronic Means { by transmitting a copy to the following persons by ☐ FAX at the telephone number set forth after each name below ☐ E-MAIL at the E-Mail address set forth after each name below, which was designated by the attorney for such purpose, and by mailing a copy to the address set forth after each name.
☐ Overnight Delivery Service { by dispatching a copy by overnight delivery to each of the following persons at the last known address set forth after each name below.

Index No.

Year

RJI No.

Hon.

SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF QUEENS

SCOTT ADELMAN,

Plaintiff,

-against-

TILACK RAMOODIT,

Defendant.

SUMMONS AND COMPLAINT

DECOLATOR, COHEN, & DIPRISCO, LLP

ATTORNEYS AT LAW

Attorneys for Plaintiff

Office and Post Office Address, Telephone

1399 Franklin Avenue • Suite 201

GARDEN CITY, NEW YORK 11530

TEL: (516) 742-6575

FAX: (516) 742-6706

To

Signature (Rule 130-1.1-a)

Attorney(s) for

Print name beneath

Joseph L. Decolator

Service of a copy of the within

is hereby admitted.

Dated,

Attorney(s) for

Please take notice

☐ NOTICE OF ENTRY

that the within is a (*certified*) true copy of a
duly entered in the office of the clerk of the within named court on

☐ NOTICE OF SETTLEMENT

that an order
settlement to the HON.
of the within named court, at
on

of which the within is a true copy will be presented for
one of the judges

at

M

Dated,

Yours, etc.

DECOLATOR, COHEN, & DIPRISCO, LLP

ATTORNEYS AT LAW

Attorneys for

To

Attorney(s) for

Office and Post Office Address
1399 Franklin Avenue • Suite 201
GARDEN CITY, NEW YORK 11530